

TAB 16



Board of Education Report

File #: Rep-237-23/24, **Version:** 1

Ratification of Special Education Master Contracts with Nonpublic School/Agency (NPSA)

April 9, 2024

Division of Special Education

Action Proposed:

Ratify the contract actions taken by the Division of Special Education within delegated authority as listed in Attachment “A”: Nonpublic School/Agency (“NPS/A”) Master Contracts (exceeding \$250,000) for the 2023-2024 school year.

Background:

The Division of Special Education prepares periodic reports for contract actions necessary for the provision of special education and related services in accordance with Board delegated authority to the Superintendent.

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education and related services. The District meets these obligations through its Special Education Local Plan Area (“SELPA”) Local Plan. The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of its special education students. (Ed. Code, §§ 56360, 56361, 56365.)

The District is required to make available NPS and NPA services and must provide these services by entering into a master contract for nonpublic, nonsectarian school or agency services. The master contract must specify the financial agreement between the District and NPS/A for the services in a student’s IEP that the NPS/A will provide. (Ed. Code, § 56366(a).) The District negotiates its master contracts with NPS/As on an annual basis. (Title 5 C.C.R. § 3062(a).)

The Division of Special Education is seeking Board ratification of Nonpublic School/Agency Master Contracts for the 2023-24 school year, as provided for in Attachment “A”, for the provision of statutorily required Individualized Education Program (“IEP”) supports and services. These contracts are within the authority previously delegated in Board action taken on June 13, 2023 (Board Report No. 286 - 22/23).

Expected Outcomes:

Ratification of the contract actions will allow the Division of Special Education to continue the provision of special education supports and services provided by these contracts to the Los Angeles Unified School District to serve eligible students with disabilities in support of Board policies and goals.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions under delegated authority, as listed in Attachment “A”, will result in the immediate unavailability of these services or discontinuance of services, or both. While non-ratification may be legally defensible, it would likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer vendors compete for

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future master contracts.

Policy Implications:

This action does not change District policy and conforms to Board action on June 13, 2023 (Board Report No. 286- 22/23).

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board.

Student Impact:

These contracts support the provision of special education and related services required by federal and state special education laws.

Equity Impact:

See attached for applicable items.

Issues and Analysis:

There are no policy implications on these agreements. The Administrative and Education Legal Services Team, Office of the General Counsel, has reviewed and approved the master contract as to form.

Attachments:

Attachment A - Ratification of Contracts Awarded Under Delegated Authority

Report referenced in the Background and Policy Implications sections:

- [Board Report No. 286- 22/23, Adopted June 13, 2023](https://drive.google.com/file/d/1kZBrRjXGj7JEqZ4YLp0scmtWYeOyDmlv/view?usp=sharing)
<<https://drive.google.com/file/d/1kZBrRjXGj7JEqZ4YLp0scmtWYeOyDmlv/view?usp=sharing>>.

Informatives:

Not Applicable.

Submitted:

03/26/24

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RESPECTFULLY SUBMITTED,
ALBERTO M. CARVALHO
Superintendent**APPROVED & PRESENTED BY:**
ANTHONY AGUILAR
Chief of Special Education, Equity
and Specialized Programs
Division of Special Education**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:
DR. JOSE SOTO
Interim Executive Director
Division of Special Education**REVIEWED BY:**
NORBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

ATTACHMENT A

APPROVAL OF NONPUBLIC SCHOOL/AGENCY MASTER CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY**A. NONPUBLIC SCHOOL/AGENCY MASTER SERVICES CONTRACTS ALREADY AWARDED
NEW CONTRACTS/AMENDMENTS/ASSIGNMENTS**

<u>DIVISION OF SPECIAL EDUCATION</u>			\$244,000,000
<u>CONTRACTOR</u>	<u>VENDOR NUMBER</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
360 DEGREE CUSTOMER INC. -LAS PER DIEM (NPA)	1000023319	Special Education Funds	\$244,000,000 (Total Aggregate)
ADVANCING HIGHER EDUCATION & DEV (AHEAD) (NPA)	1000023375	(76.84%) Federal Funds	
ALPINE ACADEMY (NPS)	1000023376	(23.16%)	
AUTISM BEHAVIOR CONSULTANTS (NPA)	1000023377		
AUTISM BEHAVIOR INTERVENTION (NPA)	1000023378		
AUTISM LEARNING PARTNERS (NPA)	1000023379		
AUTISM SPECT INTERV (NPA)	1000023380		
AUTISM SPECT THRPS (NPA)	1000023381		
BEHAVIOR & EDUC, INC (NPA)	1000023382		
BEHAVIOR FRONTIERS (NPA)	1000023383		
BEHAVIOR GUIDANCE GROUP (NPA)	1000023384		
BEHAVIORAL LEARNING NETWORK (NPA)	1000023385		
BMR HEALTH SVCS, INC (NPA)	1000023728		
BRIDGEPORT SCHOOL (NPS)	1000023656		
BRIDGEPORT WEST (NPS)	1000023549		
CALIFORNIA PSYCHCARE, INC (NPA)	1000023386		
CAROUSEL SCHOOL (NPS)	1000023387		
CENTER FOR AUT&REL SVC,INC (NPA)	1000023388		
CENTER FOR DEV MIND (NPA)	1000023389		
CHANGE ACADEMY-CALO (NPS)	1000023390		
CHILD COUNSELING & BEHAVIOR THERAPY CLINIC (NPA)	1000023391		
CHILD DEVELOPMENT INSTITUTE (NPA)	1000023392		
CHIME INSTITUTE (PRESCHOOL DIS) (NPA)	1000023393		
CINNAMON HILLS SCH (NPS)	1000023394		
CREATIVE BEHV CONSLT (NPA)	1000023395		
CTR BEH, ED & SOC THER. (NPA)	1000023396		
DEVELOPMENTAL DYNAMO INC (NPA)	1000023398		
DEVEREUX ACKERMAN (NPS)	1000023399		

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APPROVAL OF NONPUBLIC SCHOOL/AGENCY MASTER CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY

DEVEREUX SCHOOL OF VIERA (NPS)	1000023402
DUBNOFF SCHOOL (NPS)	1000023404
EARLY STRIDES (NPA)	1000023405
EKO MULTI PURPOSE CENTER, INC. (NPS)	1000023407
ELLIOTT INSTITUTE, INC. (NPS)	1000023408
ESSEY, CAROL (NPA)	1000023409
FIRSTSTEPS FOR KIDS, INC (NPA)	1000023410
FOCUS ON ALL CHILD THERAPIES (NPA)	1000023411
GARY STROMBERG & ASSOCIATES - PER DIEM (NPA)	1000023412
HAWTHORNE ACADEMY (NPS)	1000023413
HELP GROUP-NORTH HILLS PREP (NPS)	1000023591
HERITAGE SCHOOL (NPS)	1000023415
INCLUSIVE ED. & COMM PARTNERSHIP (NPA)	1000023416
INIZIO INTERVNTN INC (NPA)	1000023417
INSTITUTE FOR APPL. BEH. ANALYSIS (NPA)	1000023419
INTENSIVE BEH INTRVEN CONSULTANTS (NPA)	1000023420
INTERCARE THERAPY (NPA)	1000023421
IRL ALMANSOR (NPS)	1000023418
IRL WESTMORELAND (NPS)	1000023418
JACK WEAVER SCHOOL (OAK GROVE) (NPS)	1000023422
KAYNE ERAS CENTER (NPA)	1000023424
KAYNE ERAS CENTER (NPS)	1000023425
LEARNING & BEHV CTR (NPA)	1000023427
LEHRHOFF, IRWIN (NPA)	1000023428
LIGHT STREET SPECIAL EDUCATION SOLUTIONS (NPA)	1000023429
LITTLE CITIZENS/WESTSIDE ACAD#1 MS (NPS)	1000023430
LITTLE CITIZENS/WESTSIDE ACAD#3 ES (NPS)	1000023430
LOGAN RIVER ACADEMY (NPS)	1000023431
LOOKING GLASS CHILDRENS SERVICES (NPA)	1000023432
LOVAAS INST./EARLY INTERVENTION (NPA)	1000023433
MCRORY PEDIATRIC SERVICES (NPA)	1000023434
NEW MEDISCAN II, LLC (NPA)	1000023435

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NORTHPOINT SCHOOL CFGC (NPS)	1000023436
NOVA HEALTH THERAPIES (NPA)	
PERSONAL COACHING SYSTEMS (NPS)	1000023437
PIONEER HLTH SVC LLC (NPA)	1000023438
PRISTINE REHAB CARE (NPA)	1000023439
PROGRESSUS THERAPY, LLC (NPA)	1000023440
PROTOCOL AGENCY, INC. (NPA)	TBA
PROVO CANYON, UHS (NPS)	1000023441
RCM HEALTH CARE SVCS (NPA)	1000023442
REACHING THE STARS CTR. FOR AUT. (NPA)	1000023443
SHABANI INSTITUTE (NPA)	1000023444
SIERRA SCHOOL OF ALHAMBRA (NPS)	1000023445
SLAUSON LEARNING CTR #1 (HIGH) (NPS)	1000023446
SLAUSON LEARNING CTR II (ELEM) (NPS)	1000023446
SMART START (NPS)	1000023447
SOLIAANT HEALTH INC (NPA)	1000023448
SOUTH BAY SPEECH AND LANGUAGE (NPA)	1000023452
SPEECH TIME (NPA)	1000023391
SPEECH/LANG/EDUC. ASSOC. (NPA)	1000023451
STAFF ASSISTANCE (NPA)	1000023452
STEPPING STONES GR (NPA)	1000023453
SUMMIT VIEW SCHOOL (NPS)	1000023594
SUMMIT VIEW SCHOOL (WESTSIDE) (NPS)	1000023593
SUNRISE SCHOOL (NPS)	1000023596
SUNRISE WEST (NPS)	1000023595
SWITZER LEARNING CENTER (NPS)	1000023454
THERAPY IN ACTION (NPA)	1000023455
THERAPY MANTRA, INC. (NPA)	1000023456
THERAPY WEST (NPA)	1000023457
TOTAL EDUCATION SOLUTIONS (NPA)	1000023458
VERDUGO HILLS AUTISM PROJECT (NPA)	1000023459
VILLAGE GLEN SCH (VALLEY) (NPS)	1000023597
VISTA SCHOOL (NPS)	1000023460
WAYFINDER FAMILY SERVICES(NPS)	1000023461
WORKING WITH AUTISM (NPA)	1000023462
YOUNG LEARNERS PRE-S & INTRVN CTR (NPS)	1000023538

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APPROVAL OF NONPUBLIC SCHOOL/AGENCY MASTER CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY**B. NONPUBLIC SCHOOL/AGENCY MASTER SERVICES CONTRACTS ALREADY AWARDED NEW CONTRACTS/AMENDMENTS/ASSIGNMENTS**

<u>DIVISION OF SPECIAL EDUCATION</u>			\$244,000,000
<u>CONTRACTOR</u>	<u>VENDOR NUMBER</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
AEQUOR HEALTHCARE (NPA)	1000025643	Special Education Funds (76.84%) Federal Funds (23.16%)	\$244,000,000 (Total Aggregate)
EDTHEORY, LLC (NPA)	1000025702		
GOLDEN STATE SPEECH (NPA)	1000025690		

The Division of Special Education is seeking Board ratification of three additional Nonpublic School/Agency Master Contracts for the 2023-24 school year for the provision of statutorily required student Individualized Education Program (IEP) supports and services. These contracts are within the authority previously delegated in Board action taken on June 13, 2023 (Board Report No. 286 – 22/23).

The LAUSD’s Division of Special Education (DSE) has the authority to contract for nonpublic services under Education Code section 56366 and as further specified by Title 5, California Code of Regulations Section 3065, for a student whose documented needs, as stated on the IEP, are of a nature and/or severity that require a special education instructional program or services which cannot be provided by a District program.

Contract Term: 07/01/23 through 6/30/24 to be renewed annually.

Aggregate Contract Value For Contracts in Attachment “A”: \$244,000,000

Requester:

Jose Soto, Ed. D
Interim Executive Director
Division of Special Education

ATTACHMENT A

APPROVAL OF NONPUBLIC SCHOOL/AGENCY MASTER CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY**Equity Impact:**

Component	Score	Score Rationale
Recognition	3	The ratification of the nonpublic school and agency (NPS/A) master contracts supports the District's efforts to provide mandated special education and related services and programs for students with disabilities pursuant to their Individualized Education Plan (IEP). The District is required to maintain a continuum of program options, to include nonpublic school and agency services, to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
Resource Prioritization	2	The NPS/A contracts will make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic schools and agencies.
Results	3	The 2023-2024 NPS/A contracts will ensure that the Division of Special Education has the required continuum of program options available to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
TOTAL	8	